SKELITE TALENT PARTNERS

Agreements Pack

9 assets · Rs 599

Sample pages. The pages that follow are taken unedited from the pack you receive.

WHAT YOU GET

- 9 files: 8 Word agreements and guides, 1 working Excel register
- NDAs, consultant, internship, IP assignment, fixed term employment
- NO post-employment non-compete, because section 27 makes one void
- The contractor misclassification test, which is the expensive mistake
- Register that flags what was never signed back and what expires next

WRITTEN AGAINST THE LAW AS IT STANDS

The four Labour Codes commenced 21 November 2025. Central rules followed in May 2026. Every document states the position it was written against.

SKELITE TALENT PARTNERS

Start Here — Agreements

Pack 15 — Agreements | Ref: P15-00

Seven agreements and a register, written for what actually works in India.

THE ONE THING THAT MAKES THIS PACK DIFFERENT

There is no post-employment non-compete clause anywhere in it.

Most Indian employment templates you can buy still contain one. Under section 27 of the Indian Contract Act 1872 it is void, and no amount of careful drafting saves it. Including one would have made this pack look more complete while selling you protection you do not have.

File 01 explains the position and gives you the three restraints that do work.

WHAT IS INSIDE

File	What it is	Use it when
00	This guide	
01	What actually holds up in an Indian court	Read first. It decides how you use everything else.
02	NDA, mutual	Both sides will share information
03	NDA, one way	Only you are sharing
04	Consultant agreement	Engaging someone who is genuinely not an employee
05	Internship agreement	Taking on a student or trainee
06	Confidentiality and IP assignment	Every employee, at joining
07	Fixed term employment agreement	A role with a defined end date
08	Agreements register	Tracking what is signed and when it expires

THESE ARE TEMPLATES, AND CONTRACTS ARE WHERE THAT MATTERS MOST

A policy that is slightly wrong causes confusion. A contract that is wrong binds you, or fails to bind the other side, and you usually find out at the worst possible moment.

Use these to understand what you need and to arrive at your lawyer with a draft rather than a blank page. That makes their work faster and your bill smaller. Do not sign any of them without that review.

THREE THINGS TO SETTLE BEFORE YOU USE ANY OF THESE

1. **Stamp duty is a state subject and this pack cannot tell you the rate. —** It varies by state and by instrument. An unstamped or under-stamped agreement can be inadmissible as evidence, which means you have a contract you cannot enforce. Ask your CA or lawyer what applies in your state before you execute.

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SKELITE TALENT PARTNERS

What Actually Holds Up in an Indian Court

Pack 15 — Agreements | Ref: P15-01

Read this before using any agreement in this pack.

Legal position checked 25 October 2026. Law changes. Confirm it still stands, and have anything contractual reviewed, before you use this.

THE NON-COMPETE PROBLEM, STATED PLAINLY

Section 27 of the Indian Contract Act 1872 says that every agreement by which anyone is restrained from exercising a lawful profession, trade or business is void to that extent.

India does not apply the reasonableness test that English and American courts use. In those systems a non-compete can survive if it is narrow enough in time and territory. **In India it cannot.** Narrowing it does not save it.

WHY THIS KEEPS SURPRISING PEOPLE

Most employment templates in circulation in India contain a post-employment non-compete, usually copied from an American or British precedent. Employers include it, employees sign it, and almost nobody tests it.

When it is tested, it fails. The Delhi High Court confirmed the position again in Varun Tyagi v. Daffodil Software in June 2025: a post-employment restraint is void under section 27 however carefully it is drafted.

What this means in practice

Restraint	Does it work in India?
Non-compete that applies **after** employment ends	**No.** Void under s.27.
Non-compete that applies **during** employment	Generally yes. The employee owes a duty of fidelity while employed.
Garden leave, paid, during the notice period	Generally yes, because the person is still employed and still paid.
Non-solicitation of clients or staff	More likely to be enforced than a non-compete. Not guaranteed. Keep it reasonable.
Confidentiality	Yes. This is your real protection.
Assignment of intellectual property	Yes, and it is essential.
Restraint on the **seller of a business**	Yes, within reasonable local limits. Exception 1 to s.27.

SO WHAT ACTUALLY PROTECTS YOU

Three things, and they are all in this pack.

Confidentiality. They may not use or disclose what they learned. This is enforceable and it is what stops the real damage.

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IP assignment. What they created at your cost belongs to you. Without a written assignment this is far less clear than founders assume.

Non-solicitation. They may not poach your clients or your people for a defined period. Keep it narrow and tied to people they actually dealt with.

Together these protect the things you were actually worried about. A non-compete only looked like it did.

SHOULD YOU KEEP A NON-COMPETE ANYWAY, BECAUSE IT FRIGHTENS PEOPLE?

Some employers do, reasoning that most employees will not test it. Consider what that actually is.

- **It is a clause you know is void.** Relying on it is relying on the other person's ignorance of the law.
- **It damages you with the people you most want.** Senior candidates and good lawyers both know it is void. Including it signals that your contracts were copied rather than drafted.
- **It can sour an exit that would otherwise be clean.** An employee who takes advice learns you tried to restrain them unlawfully, and behaves accordingly.
- **It does not protect the thing you care about.** Confidentiality and IP do that, and they are enforceable.

That is why there is no such clause in this pack. If you want one anyway, your lawyer can add it and explain the position. We will not put it in a template and let you believe it works.

THE OTHER MISTAKE, AND IT IS MORE EXPENSIVE

Calling someone a consultant does not make them one.

Indian authorities look at how the relationship actually works, not at the heading on the document. The question they ask is whether this person is an integral part of your core business or is delivering a discrete external service.

Looks like a genuine contractor	Looks like an employee in disguise
Works on defined projects or deliverables	Works full time, continuously
Has other clients	Works for you exclusively
Decides how and when to do the work	Follows your instructions and your hours
Uses their own tools and workspace	Sits at your desk, on your laptop
Invoices for outcomes	Paid a fixed monthly amount like salary
Engagement has a real end	Has quietly run for years
Peripheral to the core business	Does what your employees do

THE SIGNAL THAT MATTERS MOST

A contractor who works full time, exclusively, under your direction, for more than about twelve months is the clearest risk signal there is.

If that describes someone you call a consultant, you probably have an employee. The cost of being wrong is back wages

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